

Amendment No. 1 to HB0034

Farmer
Signature of Sponsor

AMEND Senate Bill No. 221

House Bill No. 34*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 37-1-133, is amended by deleting subsection (b) and substituting:

(b) The disposition of a child and evidence adduced in a hearing in juvenile court must not be used against such child in any proceeding in any court other than a juvenile court, whether before or after reaching majority, except in:

- (1) Pretrial reports used to set bonds, if the juvenile court adjudication occurred within the previous five (5) years;
- (2) Dispositional proceedings after conviction of a felony for the purposes of a presentence investigation and report;
- (3) A proceeding pursuant to § 39-17-1352; or
- (4) A criminal prosecution for a violation of the prohibition on purchasing or possessing firearms imposed under § 37-1-190.

SECTION 2. Tennessee Code Annotated, Section 37-1-153, is amended by deleting subdivision (a)(4) and substituting:

(4) A court and its probation and other officials or professional staff and the attorney for the defendant for use in pretrial reports used to set bonds, as authorized by § 37-1-133(b)(1), and preparing a presentence report in a criminal case in which the defendant is convicted and who prior thereto had been a party to the proceeding in juvenile court;

SECTION 3. Tennessee Code Annotated, Section 40-11-118, is amended by deleting subdivision (b)(7) and substituting:

(7) The defendant's prior juvenile court record, as authorized by § 37-1-133(b)(1), and prior criminal record and the likelihood that because of the records the defendant will pose a risk of danger to the community;

SECTION 4. Tennessee Code Annotated, Section 37-1-153, is amended by adding the following as a new subsection:

(g) Notwithstanding this section or another law to the contrary, all files and juvenile court records, including medical reports, psychological evaluations, and any other document, relating to a person must be opened to public inspection and their content subject to disclosure to the public if:

(1) The person has committed a homicide on the grounds of a school, as defined in § 39-13-114(a); provided, however, that this subdivision (g)(1) does not require the person to have been adjudicated delinquent for or convicted of a homicide offense in order for the person's records to be open to public inspection; and

(2) The person is deceased.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.